

HEADNOTE

“The Court agreed to declare the Defendant's request permissible, i.e. to decide upon the Counterclaim for revocation only if the patent is found infringed, thereby making the Counterclaim for revocation subject to an intra-procedural condition. This procedural approach is consistent with established case-law on conditional Counterclaims for revocation (cf. LD Munich, Decision issued on 11 March 2026, UPC_CFI_180/2025 and UPC_CFI_210/2025; LD Mannheim, Decision issued on 5 December 2025, UPC_CFI_414/2024; LD Munich, Decision issued on 13 January 2026, UPC_CFI_628/2024 and UPC_CFI_125/2025, and recently confirmed by the CoA, see decision UPC- CoA-40/2026, Emboline v AorticLab, 16 July 2026; HEADNOTES 1) Limiting a counterclaim for revocation by making it conditional upon a finding of infringement is permissible".) Thus, the Court will examine the infringement matter prior to the validity matter in the present decision. (see §7 of the present decision)

The Court recalls that the burden of proving infringement rests on the Claimant of the main action. It is therefore for the Claimant to establish that the accused products implement all features of the asserted claims, either by direct use or by indirect use of the invention. In the present case, the Court considers that a solution requiring the transmission of any additional data goes against the teaching of the patent and is not encompassed in the scope of the claim. The Claimant has not established that the claimed technical effect is achieved by the attacked embodiments; the demonstration of the infringement proposed by the Claimant relies on additional corrective information that is inconsistent with the technical teaching of the Patent. Therefore, the Claimant fails to prove the alleged infringement. (see § 74 and 92-95 of the present decision)”

COURT
Local Division in Paris

PROCEEDINGS
Decision on the merits

PATENT
EP2345029

Method, computer program and device
for decoding a digital audio signal

KEYWORDS

Conditional Counterclaim for revocation

Efficiency of the procedure

Infringement action

Burden of proof

SUMMARY

The Local Division in Paris ruled on a decision on the merits. The patent at issue relates to a method, computer program and device for decoding a digital audio signal. According to the headnotes of the decision, the Court determined that a defendant may conditionally file a counterclaim for revocation that only proceeds to judgment if the patent is found to be infringed, a procedural approach that aligns with established UPC case-law. The claimant bears the burden of proving infringement by demonstrating that the accused products implement all features of the asserted claims, and in this case, the Court found that the claimant failed to establish that the accused embodiments achieved the claimed technical effect without relying on additional corrective information inconsistent with the patent's technical teaching.